Acme Digital Solutions Private Limited
Unit 402, Peninsula Business Park, Senapati Bapat Marg, Lower Parel, Mumbai 400013, Maharashtra, India

Data Processing Agreement

Notice. CONFIDENTIAL TEMPLATE — This document contains sample organisational details for illustration only. Replace all references to Acme Digital Solutions Private Limited with your entity's particulars and obtain qualified legal review before execution or publication.

Field	Value
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Applicable law	DPDP Act, 2023 · DPDP Rules, 2025

THIS DATA PROCESSING AGREEMENT ("Agreement") is executed on 01 April 2026 and forms an integral part of the Master Cloud Services Agreement dated 15 January 2024 between Acme Digital Solutions Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at Unit 402, Peninsula Business Park, Senapati Bapat Marg, Lower Parel, Mumbai 400013, Maharashtra, India ("Data Fiduciary") and CloudHost Technologies India Private Limited, having its registered office at Embassy Tech Village, Bengaluru 560103 ("Data Processor").

Recitals

A. The Data Fiduciary acts as a Data Fiduciary under the Digital Personal Data Protection Act, 2023 and engages the Data Processor to provide managed cloud hosting services for the Acme Platform.

B. The parties wish to set out their respective rights and obligations regarding the processing of Personal Data in compliance with the Act and the Digital Personal Data Protection Rules, 2025.

C. In the event of any inconsistency between this Agreement and the Master Cloud Services Agreement on matters of data protection, this Agreement shall prevail.

NOW, THEREFORE, the parties agree as follows:

1. Definitions and interpretation

1.1 "Act" means the Digital Personal Data Protection Act, 2023.

1.2 "Rules" means the Digital Personal Data Protection Rules, 2025.

1.3 "Personal Data" has the meaning in Section 2(t) of the Act.

1.4 "Processing", "Data Principal", "Data Fiduciary" and "Data Processor" have the meanings in the Act.

1.5 "Sub-processor" means any processor engaged by the Data Processor.

1.6 "Personal Data Breach" means unauthorised processing or disclosure of personal data.

2. Scope and duration

2.1 Processor shall process Personal Data solely to provide managed cloud hosting services for the Acme Platform as described in Annex A.

2.2 Processing continues for the term of the Master Agreement and any wind-down period not exceeding ninety (90) days.

3. Processor obligations

3.1 Process Personal Data only on documented instructions from Fiduciary, including with regard to cross-border transfers.

3.2 Ensure persons authorised to process are bound by written confidentiality obligations.

3.3 Implement technical and organisational measures in Annex B, consistent with Rule 6.

3.4 Not engage Sub-processors without Fiduciary's prior written authorisation per Annex C.

3.5 Assist Fiduciary in responding to Data Principal rights requests within fifteen (15) business days.

3.6 Delete or return all Personal Data within thirty (30) days of termination and certify deletion.

3.7 Make available information necessary to demonstrate compliance and permit audits per Clause 8.

3.8 Notify Fiduciary within twenty-four (24) hours of becoming aware of a Personal Data Breach.

4. Fiduciary obligations

4.1 Fiduciary warrants it has a lawful basis for processing and has provided compliant notices to Data Principals.

4.2 Fiduciary shall not instruct Processor to process in violation of the Act.

5. Cross-border transfers

5.1 Processor shall not transfer Personal Data outside India except to destinations not restricted under Section 16 and with Fiduciary's written approval.

6. Liability

6.1 Processor indemnifies Fiduciary for losses arising from Processor's breach of this DPA, subject to liability caps in the Master Agreement except where prohibited by the Act.

7. Governing law

7.1 Governed by laws of India. Courts at Mumbai, Maharashtra have exclusive jurisdiction.

8. Audit rights

8.1 Fiduciary may audit once per year on thirty (30) days' notice, or accept Processor's annual SOC 2 Type II report.

9. Signatures

For Acme Digital Solutions Private Limited: _____ Title: _____ Date: ____/____/____

For CloudHost Technologies India Pvt. Ltd.: _____ Date: ____/____/____

Annex A — Processing details

Element	Description
Subjects	Acme Platform customers and authorised users
Categories	Identity, contact, account, usage logs, support content
Operations	Storage, retrieval, backup, transmission
Purpose	Cloud hosting of Acme SaaS application

Annex B — Technical and organisational measures

- ISO 27001 certified data centres in Mumbai and Hyderabad
- AES-256 encryption at rest; TLS 1.3 in transit
- Logical segregation of Acme tenant data
- MFA, RBAC, privileged access management
- 24×7 SOC monitoring and annual penetration testing
- Business continuity — RPO 1 hour, RTO 4 hours

Annex C — Approved Sub-processors

Sub-processor	Function	Location
Amazon Data Services India	Infrastructure	India
Veeam Software India	Backup	India

Execution

Party	Authorised signatory	Designation	Signature	Date
Data Fiduciary		Director / Authorised Representative		
Data Processor / Counterparty		Director / Authorised Representative		